

25STCV35702 25STCV35702

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-02

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Case Number: 25STCV35702 Hearing Date: September 2, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 2, 2026

Case Name: Karamooz v. Alexander, et al.

Case No.: 25STCV35702

Matter: Demurrer

Moving Party: Defendant Arya Alexander

Responding Party: Plaintiff Negar Karamooz

Ruling: The Demurrer is overruled.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On March 4, 2026, Negar Karamooz filed the operative First Amended Complaint (FAC) for (1) financial elder abuse, (2) negligence, (3) violations of Uniform Voidable Transactions Act, and (4) rescission.

Defendant Arya Alexander now demurs to the entirety of the FAC for failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Defendant argues that all causes of action are barred by a release within the settlement agreement between the parties.

This lacks merit because the FAC pleads fraudulent inducement/concealment. Defendant merely raises factual issues. A provision within a contract stating decisions are made with one’s own knowledge or discretion is not a license to commit fraud.

The Demurrer is overruled. The RJN is granted.

An answer is to be filed within 10 days.

Moving party to give notice.